

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Harrison	Team: Team # 2	CCRB Case #: 201013191	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/24/2010 8:20 PM	Location of Incident: § 87(2)(b)	Precinct: 47	18 Mo. SOL 3/24/2012	EO SOL 3/24/2012	
Date/Time CV Reported Mon, 09/27/2010 4:02 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/27/2010 4:02 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Amanjeet Sandhu	04523	931138	047 PCT
2. POM Joshua Valdez	15354	947565	047 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Kopf	28420	936883	047 PCT
2. POF Danil Acevedo	10798	934364	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Amanjeet Sandhu	Abuse: Sgt. Amanjeet Sandhu stopped § 87(2)(b) and § 87(2)(b)	
B.SGT Amanjeet Sandhu	Abuse: Sgt. Amanjeet Sandhu supervised frisks of § 87(2)(b) and § 87(2)(b)	
C.POM Joshua Valdez	Abuse: PO Joshua Valdez searched § 87(2)(b)	
D. An officer	Discourtesy: An officer spoke obscenely to § 87(2)(b)	

Case Summary

On September 27, 2010, § 87(2)(b) filed this complaint via telephone with the CCRB. On October 4, 2010, § 87(2)(b) filed a complaint about the same incident via telephone with the CCRB. § 87(2)(b)'s complaint, #§ 87(2)(b), § 87(2)(b) was consolidated with § 87(2)(b)'s. On September 24, 2010, at approximately 8:20 p.m., at § 87(2)(b) in the Bronx, § 87(2)(b) and § 87(2)(b) were stopped by Sgt. Amanjeet Sandhu and PO Joshua Valdez. The following allegations resulted:

Allegation A) Abuse of Authority: Sgt. Amanjeet Sandhu stopped § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) § 87(2)(f)
§ 87(2)(b)
§ 87(2)(b)

Allegation B) Abuse of Authority: Sgt. Amanjeet Sandhu supervised frisks of § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

Allegation C) Abuse of Authority: PO Joshua Valdez searched § 87(2)(b) § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)

Allegation D) Discourtesy: An officer spoke obscenely to § 87(2)(b) § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) a black female, did not provide pedigree information.

On September 27, 2010, § 87(2)(b) called the CCRB and alleged that her son, § 87(2)(b) and his friends, § 87(2)(b) and § 87(2)(b) had been stopped by police and taken to the 47th Precinct stationhouse and questioned. § 87(2)(b) did not witness these events (encl. 3A-B).

Complainant: § 87(2)(b)

- § 87(2)(b) a black female who stands 5'3" tall, weighs 160 lbs., and has red hair and dark brown eyes, is § 87(2)(b)

On October 4, 2010, § 87(2)(b) called the CCRB and alleged that her son, § 87(2)(b) and his friends, § 87(2)(b) and § 87(2)(b) had been stopped by police and taken to the 47th Precinct stationhouse and questioned. § 87(2)(b) did not witness these events (encl. 5A).

Victim: § 87(2)(b)

- § 87(2)(b) a black, male § 87(2)(b) who stands 5'6" tall, weighs 168 lbs., and has black hair and brown eyes, is § 87(2)(b).

§ 87(2)(b) was interviewed at the CCRB on October 1, 2010 (encl. 4A-C). On Friday September 24, 2010, at approximately 8:20 p.m., § 87(2)(b) and his friends, § 87(2)(b) and § 87(2)(b) left the sitting area outside of § 87(2)(b) in the Bronx, in which they had been socializing for the past ten minutes, and walked south on § 87(2)(b) to § 87(2)(b)'s home. § 87(2)(b) was wearing a white polo shirt, Adidas sneakers, and sweatpants. § 87(2)(b) was wearing a red hat and white t-shirt. § 87(2)(b) was wearing a white t-shirt, sweatpants, and a red hat. At the intersection of § 87(2)(b), Sgt. Amanjeet Sandhu (identified through investigation) and PO Joshua Valdez (identified by name read on badge) pulled up behind § 87(2)(b) and his friends in a marked patrol vehicle and asked them to stop. The officers had § 87(2)(b) and his friends stand for approximately ten minutes. PO Valdez asked § 87(2)(b) to stop using his cell phone, and § 87(2)(b) put the phone into his pocket. PO Valdez then reached into § 87(2)(b)'s pockets without frisking him first and pulled out his cell phone. PO Valdez then frisked § 87(2)(b). Sgt. Sandhu interacted with § 87(2)(b)'s friends. PO Michael Kopf (identified through investigation) and PO Danil Acevedo (identified through investigation), arrived in a separate marked patrol car. An unmarked black vehicle arrived on the scene and idled across the street. § 87(2)(b) was taken to the 47th Precinct stationhouse by Sgt. Sandhu and PO Valdez, and § 87(2)(b) and § 87(2)(b) were taken in a separate car. At the 47th Precinct stationhouse, § 87(2)(b) and § 87(2)(b) were questioned separately by police. § 87(2)(b) was questioned by DET1, a white male with dark hair whom § 87(2)(b) believed was a detective. DET1 asked § 87(2)(b) what school he attended, whether § 87(2)(b) had been drinking that night, whether he was affiliated with or knew anyone affiliated with a gang, and whether he had heard gunshots that evening. DET1 told § 87(2)(b) that there had recently been a shooting at the § 87(2)(b) nearby, and that § 87(2)(b) and his friends matched a description. § 87(2)(b) was released with no summons or charges.

Victim: § 87(2)(b)

- § 87(2)(b) a black, male § 87(2)(b) with hazel eyes, is § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on October 12, 2010 (encl. 6A-F). § 87(2)(b) (g) However, § 87(2)(b) did not state that PO Valdez had searched § 87(2)(b)'s pockets. § 87(2)(b) provided the following new details about the incident: § 87(2)(b) was wearing a sweater. There was at least one older male in an orange shirt and an old woman walking her dog at the park. When § 87(2)(b) asked Sgt. Sandhu why he and his friends had been stopped, Sgt. Sandhu told them that they matched a description of two black males in white shirts. PO Valdez remained in § 87(2)(b)'s presence while he was being the juvenile pen at the 47th Precinct stationhouse. DET1, a white male with brown hair and brown eyes whom § 87(2)(b) believed was a detective, entered the holding area and slapped § 87(2)(b) on the chest with the back of the fingers of his open-palmed right hand. DET1 asked § 87(2)(b)'s name and why § 87(2)(b) had been out at the playground. § 87(2)(b) responded that he and his friends were hanging out and looking for girls. DET1 asked § 87(2)(b) if he expected him "to fucking believe that" and left the room. A little later, § 87(2)(b)

§ 87(2)(b) was taken out of the holding area to a room where he was again questioned by DET1 in the presence of PO Valdez. DET1 told § 87(2)(b) that two kids were shot in the Edenwald projects that evening fifty yards away from where § 87(2)(b) and his friends had been hanging out. DET1 asked § 87(2)(b) if he or his friends were members of a gang and if he knew any gang members. § 87(2)(b) told DET1 that he was not a member of any gang and that he knew people rumored to be in gangs but would not name them. DET1 told § 87(2)(b) that he was “fucking lying.”

Attempts to Contact Civilians

§ 87(2)(b) lives in Charlotte, North Carolina. § 87(2)(b) provided a phone number for § 87(2)(b). Five phone calls were made to § 87(2)(b) between September 29, 2010, and October 19, 2010. On September 29, 2010, the undersigned investigator called § 87(2)(b). An unidentified individual answered the phone but did not respond. On October 5, 2010, the investigator made a second call to § 87(2)(b) and left a voicemail message. On October 5, 2010, at 9:49 p.m., § 87(2)(b) called the investigator and left a voicemail message. On October 7, 2010, the investigator made a third call to § 87(2)(b) and left a voicemail message. On October 15, 2010, the investigator made a fourth call to § 87(2)(b) and received an automated stating that § 87(2)(b)'s phone number was unavailable. No voicemail message could be left. On October 19, 2010, the investigator made a fifth call to § 87(2)(b) and received the same ‘unavailable’ message. No voicemail message could be left. No letters or emails could be sent to § 87(2)(b) because neither § 87(2)(b) nor § 87(2)(b) know § 87(2)(b)'s mailing or email addresses, and the mailing address for § 87(2)(b) listed on the 47th Precinct Command Log is unintelligible (encl. 21D).

NYPD Statement(s):

Subject Officer: SGT. AMANJEET SANDHU

- *An Asian Indian male who stands 6’1” tall, weighs 165 lbs, has black hair and brown eyes, is § 87(2)(b) old.*
- *Worked from 5:15 p.m., on September 23, 2010, to 2:12 a.m., on September 24, 2010, in uniform, in a marked police vehicle, on a conditions assignment with PO Joshua Valdez.*

Sgt. Sandhu has the following memo book entries from September 24, 2010, about this incident (encl. 7A-C): 7:41 p.m., assault in progress at § 87(2)(b), looking for three black males last seen going through § 87(2)(b). 8:30 p.m., three males stopped; males stated that they were in § 87(2)(b) bringing them back for investigation; no one available for show up, no ID’s. 8:38 p.m., transported males back to 47th Precinct station house.

Sgt. Sandhu was interviewed at the CCRB on November 19, 2010 (encl. 8A-B). At 7:47 p.m., on September 24, 2010, Sgt. Amanjeet Sandhu and PO Joshua Valdez received several police radio calls about a shooting at § 87(2)(b). The perpetrators were described as three young black males seen fleeing to § 87(2)(b). Sgt. Sandhu does not recall any other description of the suspects. Sgt. Sandhu and PO Valdez canvassed the area. Sgt. Sandhu and PO Valdez were driving down § 87(2)(b) when they observed § 87(2)(b) and § 87(2)(b) exiting § 87(2)(b). Sgt. Sandhu could not recall any description of § 87(2)(b) or § 87(2)(b) other than that they were three black males. Sgt. Sandhu also observed some older males at the park, but none fit the radio description. Sgt. Sandhu and PO Valdez followed the males for half a block before Sgt. Sandhu stopped § 87(2)(b).

§ 87(2)(b) § 87(2)(b) and § 87(2)(b) at § 87(2)(b) by making a verbal request and gesturing with his hand for them to stop. § 87(2)(b) and § 87(2)(b) asked why they were stopped. Sgt. Sandhu explained to the civilians that they fit a description. In less than five minutes, PO Michael Kopf and PO Danil Acevedo, arrived on the scene. Sgt. Sandhu frisked one of the civilians (he could not remember which). Sgt. Sandhu stated that his reason for frisking the civilian was that the civilian fit the description of the perpetrator of a violent crime. PO Valdez and PO Kopf frisked the other civilians. Sgt. Sandhu did not search any civilian, and does not recall any of the officers searching any of the civilians. Sgt. Sandhu requested over police radio a witness show-up to determine if the civilians were the perpetrators of the shooting. Sgt. Sandhu was informed over the radio that the shooting victim was en route to the hospital and no one could be brought by to identify the civilians. Sgt. Sandhu does not remember any unmarked car arriving on the scene. Because no one could identify the civilians, Sgt. Sandhu decided to take them to the 47th Precinct stationhouse for further investigation. Sgt. Sandhu and PO Valdez transported one of the males in their car. At the stationhouse, Sgt. Sandhu described his stop to a detective. Sgt. Sandhu instructed PO Valdez to stay with the males in the stationhouse's juvenile facility, and then resumed patrol.

Witness Officer: PO JOSHUA VALDEZ

- *An Hispanic male who stands 6'1" tall, weighs 215 lbs., and has black hair and brown eyes, is § 87(2)(b) old.*
- *Worked from 5:15 p.m., on September 23, 2010, to 2:12 a.m., on September 24, 2010, in uniform, in a marked police vehicle, on a conditions assignment with Sgt. Amanjeet Sandhu.*

PO Valdez has the following memo book entries from September 24, 2010, about this incident (encl. 10A-B): 7:50 p.m., shots fired § 87(2)(b). 8:15 p.m., three males stopped at § 87(2)(b). 8:20 p.m., three under arrest for questioning in regards to shooting. 11:00 p.m., three males released.

PO Valdez was interviewed at the CCRB on November 5, 2010 (encl. 12A-B). § 87(2)(g) PO Valdez provided the following additional details about the incident: The radio calls about a recent shooting specified the location as being at the § 87(2)(b). The suspected shooters were described as three black males between age 16 and 18, all wearing white shirts and one wearing light-colored pants. PO Valdez frisked § 87(2)(b) because § 87(2)(b) fit the radio description of the perpetrator of a violent crime. § 87(2)(b) was wearing headphones, the cord of which lead down into his pocket. During the frisk, PO Valdez felt a heavy object in § 87(2)(b)'s pocket. PO Valdez asked § 87(2)(b) if he had an electronic device in his pockets, and asked § 87(2)(b) if he would open him pockets to confirm. § 87(2)(b) did open his pockets, and PO Valdez saw that he had an electronic device. PO Valdez did not search § 87(2)(b)'s pockets. A detective squad car arrived on the scene, and Sgt. Sandhu conferred with the occupants of the car. At the 47th Precinct stationhouse, PO Valdez stayed with § 87(2)(b) because he was a juvenile and was in the presence of § 87(2)(b) when DET1, a male, questioned him. DET1 asked § 87(2)(b) if he had heard gunshots or knew anyone involved in the shootings. § 87(2)(b) was cooperative. DET1 made no physical contact with § 87(2)(b) nor used any profanity in speaking with him.

Witness Officer: PO DANIL ACEVEDO

- *Hispanic female who stands 5'2" tall, weighs 127 lbs, has brown hair and green eyes, is 32 years old.*
- *Worked from 3:00 p.m. to 11:35 p.m. on September 24, 2010 in uniform, in a marked police vehicle, patrolling sectors D and with PO Michael Kopf.*

PO Acevedo has the following memo book entry from September 24, 2010, about this incident (encl. 14A-D): 8:23 p.m., two males 47th Precinct investigation.

PO Danil Acevedo was interviewed at the CCRB on November 18, 2010 (encl. 15A-B). § 87(2)(g) PO Acevedo provided the following additional details: Radio calls regarding the shooting included a description of two male suspects, one wearing a red sweater and the other wearing a white shirt and black pants. Two of the males whom Sgt. Sandhu had stopped partially fit this description: one wore a red shirt and one a white shirt. PO Acevedo does not recall any other officers, detectives, or police vehicles arriving on the scene. Sgt. Sandhu gave instructions to the officers to take the males to the 47th Precinct stationhouse.

Witness Officer: PO MICHAEL KOPF

- *White male who stands 5'11" tall, weighs 185 lbs., has brown hair and brown eyes, is § 87(2)(b) years old.*
- *Worked from 3:00 p.m. to 11:35 p.m. on September 24, 2010 in uniform, in a marked police vehicle, patrolling sectors D and with PO Danil Acevedo.*

PO Kopf has the following memo book entries from September 24, 2010, about this incident (encl. 17A-D): 8:23 p.m., two males in automobile to 47th Precinct stationhouse for investigation for Conditions investigation.

PO Michael Kopf was interviewed at the CCRB on November 18, 2010 (encl. 18A-B). § 87(2)(g) PO Kopf added the following further information about the incident: A radio description was given for two males, though PO Kopf cannot remember what the description was. Very soon after receiving this description, Sgt. Sandhu stated over the radio that he had stopped three males at § 87(2)(b). PO Kopf stated that § 87(2)(b) and § 87(2)(b) clearly fit the description he had heard over the radio, though PO Kopf could not recall in what way they did. PO Kopf does not recall other officers arriving on the scene.

NYPD Document(s)

911 Calls

At 7:47 p.m., on September 24, 2010, ten 911 calls were made regarding a shooting in the § 87(2)(b) (summarized in encl. 29K). Several proximate locations were given for the shooting: § 87(2)(b). The only 911 which provided a description of the shooting suspects was a call made at 9:48 p.m., which reported the location of the shooting as § 87(2)(b). This call is recorded in 911 MSG 006.wav and transcribed in SPRINT § 87(2)(b) (encl. 20I-K). The caller stated that the

shooters were three young black males, one wearing a white hoodie and two wearing white t-shirts, who fled to § 87(2)(b), which is across § 87(2)(b)

Police Communication Records

The audio recording of the police dispatcher's communications, RADIO MSG 001.wav (summarized in encl. 29K-L), and corresponding transcription, SPRINT § 87(2)(b) (encl. 20A-F), records the following: At 1:19 in the recording, the dispatcher states the following description: multiple perpetrators wearing white hoodies, one wearing a white t-shirt, fled into Seton Falls Park. At 1:59 in the recording (7:49 p.m. according to SPRINT § 87(2)(b)) Patrol Sector F arrives at the scene of the shooting. At 4:01 in the recording (7:51 p.m. in the SPRINT § 87(2)(b)) Patrol Sector F gives another description of the perpetrators as three black males wearing blue t-shirts and white t-shirts who fled on foot across § 87(2)(b) into a park. Patrol Sector F gives another description of a perpetrator as a black male, approximately 17 years old, in a white hoodie and blue jeans. At 19:15 in the recording (8:11 p.m. according to SPRINT § 87(2)(b)) Sgt. Sandhu reports that he is canvassing the area of the park. At 25:42 in the recording, Sgt. Sandhu requests the dispatcher to repeat the description. It is repeated as three black males, approximately 17 years old, wearing white hoodies and blue jeans. At 27:01 in the recording, Sgt. Sandhu reports three males stopped at § 87(2)(b) and requests a complainant for show-up. At 29:36 in the recording, Sgt. Sandhu again requests a complainant for show-up. At 40:05 in the recording (8:27 p.m. according to SPRINT § 87(2)(b)) Sgt. Sandhu reports that he is taking three to the stationhouse for investigation in regards to the shooting.

UF-250 Reports

UF-250 reports were filed by PO Joshua Valdez and reviewed by Sgt. Sandhu for three stops and frisks occurring at 8:15 p.m. on September 24, 2010, at § 87(2)(b) in the Bronx (encl. 11A-B). No names are listed on the UF-250's, but the descriptions correspond to § 87(2)(b) and § 87(2)(b). All three UF-250's specify the following: No searches were conducted and no arrests or summons issued. The first listed circumstance leading to stop in all three UF-250's is "fits description."

47th Precinct Command Log, September 24, 2010

The Command Log records that PO Valdez brought § 87(2)(b) and § 87(2)(b) to the 47th Precinct stationhouse at 8:40 p.m. and prepared UF-250's for each. They were released at 9:40p.m., 9:50 p.m., and 10 p.m., respectively (encl. 21D).

47th Precinct Roll Call, Tour 3, September 24, 2010

The roll call records that Sgt. Sandhu was assigned to work as conditions supervisor, that PO Valdez was assigned to conditions, and that PO Kopf and PO Acevedo were both assigned to car 2390 (encl. 22A-K)

47th Precinct Detective Squad Roll Call, September 19, 2010 – September 25, 2010

The roll call records that there were three white male MOS—Lt. John Fitzpatrick (tax 91164), Det. David Bonacarti (tax 932343), and Det. Kristian Flood (tax 926833)—on September 24, 2010, at the time that § 87(2)(b) and § 87(2)(b) were detained at the 47th Precinct stationhouse (encl. 23A-E).

MOS Photos

MOS Photos of Lt. John Fitzpatrick, Det. David Bonacarti, and Det. Kristian Flood (encl. 25A, 26A, and 27A) show that all three MOS potentially fit the description of the subject officer of **Allegation D** provided by § 87(2)(b)

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) have filed a Notice of Claim with the City of New York as of March 3, 2011, with regard to the incident (encl. 39C)

Civilian Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB Histories

- § 87(2)(b) has filed one other CCRB complaint, § 87(2)(b) and § 87(2)(b) have filed no other CCRB complaints (encl. 2A and 2C).
- § 87(2)(b) filed CCRB complaint § 87(2)(b) was consolidated with the current case. § 87(2)(b) and § 87(2)(b) have filed no other CCRB complaints (encl. 2B and 2D).

Subject Officer CCRB Histories

- Sgt. Amanjeet Sandhu has been a member of the service for eight years, and there is one substantiated CCRB allegation against him in for issuing a retaliatory summons in CCRB case 200910211 (encl. 1A). As of March 10, 2011, there is no NYPD disposition regarding this allegation.
- PO Joshua Valdez has been a member of the service for two years, and there are no substantiated CCRB allegations against him (encl. 1B).

Conclusion

Identification of Subject Officers

Sgt. Amanjeet Sandhu and PO Joshua Valdez confirmed their participation in this incident.

Five calls were made to § 87(2)(b) and § 87(2)(b) between February 17, 2011, and March 2, 2011, for the purpose of scheduling § 87(2)(b) to view photo arrays of Lt. John Fitzpatrick, Det. David Bonacarti, and Det. Kristian Flood in order to identify the subject officer of **Allegation D**. On February 17, 2011, § 87(2)(b) scheduled a photo array viewing for § 87(2)(b) for February 18, 2011. On February 18, 2011, § 87(2)(b) called the undersigned investigator to cancel the photo array viewing, stating that she wished to consult with a lawyer and would call the investigator back on February 21, 2011 to reschedule. § 87(2)(b) did not call back on February 21, 2100. On February 23, 2011, a second call was made to the § 87(2)(b) and § 87(2)(b) § 87(2)(b) stated that she would call back on February 23, 2011, to schedule a photo array viewing. § 87(2)(b) did not call back on February 23, 2011. Three more calls were made to § 87(2)(b) and § 87(2)(b) on February 25, 2011,

February 28, 2011, and March 2, 2011. Voicemail messages were left on the occasion of each phone call. Neither § 87(2)(b) nor § 87(2)(b) has contacted the investigator again.

Investigative Findings and Recommendations

Allegation A) Abuse of Authority: Sgt. Amanjeet Sandhu stopped § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Although Sgt. Sandhu did not recall the descriptions he received regarding the perpetrators of a shooting at § 87(2)(b), police communications records show that Sgt. Sandhu would have received the following descriptions prior to stopping § 87(2)(b) and § 87(2)(b): 1) multiple perpetrators wearing white hoodies, one wearing a white t-shirt, fled into Seton Falls Park; 2) three black males wearing blue t-shirts and white t-shirts who fled on foot across Baychester Avenue into a park, 3) a black male, approximately 17 years old, in a white hoodie and blue jeans. Sgt. Sandhu first observed § 87(2)(b) and § 87(2)(b) between twenty and thirty minutes after the first report of the shooting at § 87(2)(b) went over police radio. Sgt. Sandhu first observed the civilians as they were exiting § 87(2)(b) the park into which the perpetrators of the shooting at § 87(2)(b) were reported to have fled. § 87(2)(b) and § 87(2)(b) are black males who were, at the time of the incident, ages § 87(2)(b), respectively. According to § 87(2)(b) and § 87(2)(b)'s own statements, at the time of the incident § 87(2)(b) wore a white polo shirt and sweatpants, § 87(2)(b) a white t-shirt and red shorts, and § 87(2)(b) a white t-shirt and sweatpants. Sgt. Sandhu and PO Valdez both stated that § 87(2)(b) and § 87(2)(b) were the only individuals in the area who matched the description of the perpetrators. This claim is corroborated by § 87(2)(b)'s description of the other individuals at § 87(2)(b) as an older male in an orange shirt and an older female. § 87(2)(g)

Allegation B) Abuse of Authority: Sgt. Amanjeet Sandhu supervised frisks of § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

Allegation C) Abuse of Authority: PO Joshua Valdez searched § 87(2)(b)

§ 87(2)(g)

Allegation D) Discourtesy: An officer spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that a detective told him that he was “fucking” lying” and asked § 87(2)(b) if he expected him to “fucking” believe him. § 87(2)(b) provided a general description of the subject officer of this allegation as a white male with brown hair and brown eyes. PO Joshua Valdez, the only witness to § 87(2)(b)'s interaction with the subject officer, denied that the discourtesy took place and was unable to identify the subject officer. The roll call for the 47th Precinct Detective Squad showed that there were three white male MOS on duty at that command at the time § 87(2)(b) was questioned—Lt. John Fitzpatrick, Det. David Bonacarti, and Det. Kristian Flood. MOS photos of these officers show that all three potentially fit the description of the subject officer provided by § 87(2)(b). A reasonable attempt was made to contact § 87(2)(b) to schedule a photo array viewing. Over the course of five telephone calls, § 87(2)(b) could not be reached directly, and his mother, § 87(2)(b) was uncooperative in scheduling a viewing on his behalf. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Team: 2

:

Investigator:	_____	Patrick Harrison	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date